

Jangam Lakshmi Narayana vs The State Of A.P. on 11 September, 2025

APHC010181552024

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI [3396]
(Special Original Jurisdiction)

THURSDAY, THE ELEVENTH DAY OF SEPTEMBER
TWO THOUSAND AND TWENTY FIVE
PRESENT

THE HONOURABLE DR JUSTICE VENKATA JYOTHIRMAI PRATAPA
CRIMINAL PETITION NO: 2827/2024

Between:

1. JANGAM LAKSHMI NARAYANA, S/O YADHUBHUSHANAM, HINDU, AGED ABOUT 46 YEARS, OCC ADVOCATE, D.NO 3/500, KARNALA STREET, SRIKALAHASTI, CHITTOR DISTRICT, A.P
2. J S YADHUBHUSHANAM, S/O J SREENIVASULU CHETTY, HINDU, AGED ABOUT 72 YEARS, OCC ADVOCATE, D.NO 3/500, KARNALA STREET, SRIKALAHASTI, CHITTOOR DISTRICT, A.P
3. JANGAM TIRUMALA VENKATA SUBRAHMANYAM @ J. TIRUMALESH, S/O J S YADHUBHUSHANAM, HINDU, AGED ABOUT 52 YEARS, OCC ADVOCATE, D.NO 5/27, BRAHMANA STREEET, KOTHAPETA, CHANDRAGIRI MANDAL. CHITTOR DISTRICT, A.P
4. JANGAM SUJATHA, W/O J TIRUMALA VENKATA SUBRAHMANYAM, HINDU, AGED ABOUT 40 YEARS, D.NO 5/27, BRAHMANA STREEET, KOTHAPETA, CHANDRAGIRI MANDAL, CHITTOOR DISTRICT, A.P.
5. KILAAARU DRAKSHAYANI @ G.DRAKSHAYANI, W/O. LATE K. MOHAN, HINDU, AGED ABOUT 65 YEARS, D.NO. 9/2/73, GM STREET, TIRUPATI, CHITTOOR DISTRICT, A.P
6. MEDA PADMAMMA @ G.PADMAMMA, W/O LATE MEDA CHANDRASHEKAR, HINDU AGED ABOUT 73 YEARS R/O D.NO. 9/2/73, G.M STREET, TIRUPATI, CHITTOR DISTRICT, A.P
7. GUNAKALA SRINIVASULU CHETTY, S/O LATE GURUNADHAM CHETTY, HINDU, AGED ABOUT 62 YEARS, OCC BUSSINESS, R/O D.NO. 3//125, ADRATI STREET, TIRUPATI, CHITTOR DISTRICT, A.P
8. GUNAKALA SUDHA LAKSHMI, W/O SRINIVASULU CHETTY, HINDU, AGED ABOUT 52 YEARS, OCC HOUSE WIFE, R/O D.NO. 3//125, ADRATI STREET, TIRUPATI, CHITTOR DISTRICT, A.P
9. GUNAKALA KRISHNA CHAITANYA @ G. KRISHNA, S/O SRINIVASULU CHETTY, HINDU AGED ABOUT 22 YEARS, OCC LAW STUDENT, R/O D.NO. 3//125, ADRATI STREET, TIRUPATI,

CHITTOR DISTRICT, A.P.

...PETITIONER/ACCUSED(S)

AND

1. THE STATE OF A P, REP BY ITS PUBLIC PROSECUTOR, HIGH COURT OF A.P.,AMARAVATI, GUNTUR DISTRICT.
2. THE SHO, WOMEN POLICE STATION, TIRUPATI DIST.
3. JANGAM ROJA SAROJA GUNAKALA ROJA, D/O PANDU RANGAIAH, HINDU, AGED ABOUT 28, YEARS R/O D NO 15/62 B.T.R COLONY,15TH LINE, MANGALAM, TIRUPATHI URBAN MANDAL, CHITTOOR DISTRICT.

...RESPONDENT/COMPLAINANT(S):

Counsel for the Petitioner/accused(S):

1. P GANGA RAMI REDDY

Counsel for the Respondent/complainant(S):

1. PUBLIC PROSECUTOR (AP)

The Court Made the Following Order:

The instant petition under Section 482 of Cr.P.C., has been filed by the petitioners herein/Accused Nos.1, 2 and 4 to 10, seeking quashment of proceedings against them in C.C.No.235 of 2017 on the file of the learned IV Additional Junior Civil Judge, Tirupati, for the offence under Section 498A IPC and Sections 3 and 4 of the Dowry Prohibition Act.

2. Case of the prosecution, in brief is that, the marriage of de facto complainant was performed with A1 on 15.08.2014 at Tirupati. After marriage, all the accused abused her in filthy language and harassed her both mentally and physically to bring additional dowry.

3. Heard Sri P.Ganga Rami Reddy, learned counsel for the petitioners and Ms.Priyanka Lakshmi, learned Assistant Public Prosecutor for the State. Notice was served to the unofficial respondent, but none entered appearance.

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4. Learned counsel for the petitioners would submit that the marriage between A1 and respondent No.3 took place on 15.08.2014. Thereafter, she filed F.C.O.P. No. 150 of 2014 seeking nullity of marriage under

Section 12(1)(a) of the Hindu Marriage Act, 1955, and obtained a decree dated 06.08.2016. Learned counsel for the petitioners would further submit that no specific allegations have been made against the petitioners, who are the family members of the husband. Respondent No.3 has made general allegations against the petitioners, stating that they being aware of certain facts, compelled her to marry A1. It is also submitted that A3 in this matter has passed away, and the allegation of harassment by the family members of the husband during defacto complainant's brief stay of one week in the matrimonial home is highly improbable and difficult to believe. Hence, prays for quashment of the case against the petitioners.

5. Learned Assistant Public Prosecutor would submit that the respondent No.3 has approached the Court seeking nullity of marriage on the ground that A1 is impotent and the petitioners herein having knowledge of everything made respondent No.3 to marry A1. Learned Assistant Public Prosecutor would submit that the Court may pass appropriate orders.

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6. While dealing with the quashment of the matrimonial offences, the Hon'ble Apex Court in Dara Lakshmi Narayana and others Vs. State of Telangana and another¹, held as follows:

"25. A mere reference to the names of family members in a criminal case arising out of a matrimonial dispute, without specific allegations indicating their active involvement should be nipped in the bud. It is a well-recognised fact, borne out of judicial experience, that there is often a tendency to implicate all the members of the husband's family when domestic disputes arise out of a matrimonial discord. Such generalised and sweeping accusations unsupported by concrete evidence or particularised allegations cannot form the basis for criminal prosecution. Courts must exercise caution in such cases to

prevent misuse of legal provisions and the legal process and avoid unnecessary harassment of innocent family members. In the present case, appellant Nos.2 to 6, who are the members of the family of appellant No.1 have been living in different cities and have not resided in the matrimonial house of appellant No.1 and respondent No.2 herein. Hence, they cannot be dragged into criminal prosecution and the same would be an abuse of the process of the law in the absence of specific allegations made against each of them.

28. The inclusion of Section 498A of the IPC by way of an amendment was intended to curb cruelty inflicted on a woman by her husband and his family, ensuring swift intervention by the State. However, in recent years, as there have been a notable rise in matrimonial disputes across the country, accompanied by growing discord and tension within the institution of marriage, consequently, there has been a growing tendency to misuse provisions like Section 498A of the IPC as a tool for unleashing personal vendetta against the husband and his family by a wife. Making vague and generalised allegations during matrimonial conflicts, if not scrutinized, will lead to the misuse of legal processes and an encouragement for use of arm twisting tactics by a wife and/or her family. Sometimes, recourse is taken to invoke Section 498A of the IPC against the husband and his family in order to seek compliance with the unreasonable demands of a wife. Consequently, this Court has, time and again, cautioned against prosecuting the husband and his family in the absence of a clear prima facie case against them." 2024 INSC 953

7. In Preeti Gupta and another v. State of Jharkhand & another 2, the Hon'ble Apex Court held as under:

"32. Unfortunately, at the time of filing of the complaint the implications and consequences are not properly visualized by the complainant that such complaint can lead to insurmountable harassment, agony and pain to the complainant, accused and his close relations.

33. The ultimate object of justice is to find out the truth and punish the guilty and protect the innocent. To find out the truth is a herculean task in majority of these complaints. The tendency of implicating husband and all his immediate relations is also not uncommon. At times, even after the conclusion of criminal trial, it is difficult to ascertain the real truth. The courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realities into consideration while dealing with matrimonial cases. The allegations of harassment of husband's close relations who had been living in different cities and never visited or rarely visited the place where the complainant resided would have an entirely different complexion. The allegations of the complaint are required to be scrutinized with great care and circumspection. Experience reveals that long and protracted criminal trials lead to rancor, acrimony and bitterness in the relationship amongst the parties. It is also a matter of common knowledge that in cases filed by the complainant if the husband or the husband's relations had to remain in jail even for a few days, it would

ruin the chances of amicable settlement altogether. The process of suffering is extremely long and painful."

8. To summarize the judgments referred supra, it can be clearly stated that in criminal proceedings arising out of matrimonial matters, when there is no iota or whisper of allegations present in the contents of the complaint, necessary for the ingredients under the Section, general, vague and omnibus allegations and mere casual reference of names of relatives of the husband cannot be taken into account to sustain the accusations. As rightly pointed out by the learned counsel for the petitioners, there are no specific allegations made against the petitioners (2010) 7 SCC 667 to attract the offence under Section 498A of the IPC and Sections 3 and 4 of the Dowry Prohibition Act. The record further shows that the date of marriage is 15.08.2014. Even as per the contents of the complaint, respondent No.3 stayed in the matrimonial house for a period of only one week, immediately after the marriage. That being so, the alleged harassment by the petitioners towards respondent No.3, so as to attract the offences under Section 498A IPC and Sections 3 and 4 of the Dowry Prohibition Act, appears highly improbable and difficult to believe. The record further discloses that the marriage between the parties was annulled by a decree dated 06.08.2016, and the present case was lodged during the pendency of that petition, on 28.05.2016. Therefore, it is a fit case for quashment by exercising the jurisdiction under Section 482 Cr.P.C.

9. Accordingly, the Criminal Petition is allowed and the proceedings, in respect of petitioners herein/Accused Nos.1, 2 and 4 to 10 in C.C.No.235 of 2017 on the file of the learned IV Additional Junior Civil Judge, Tirupati, are hereby quashed.

Pending applications, if any, shall stand closed.

Dr.JUSTICE VENKATA
JYOTHIRMAI PRATAPA Date : 11.09.2025 ASR THE HONOURABLE DR JUSTICE VENKATA
JYOTHIRMAI PRATAPA Dt.11.09.2025 Asr